

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.:

RAYHANAH ALHANAFI,

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK,
POLICE OFFICER TUHIN KHAN, JOHN DOES 1-3,
AND JANE DOE,

**PLAINTIFF DESIGNATES
NEW YORK COUNTY AS
THE PLACE OF TRIAL**

Defendants.

The basis of venue is location of
the incident.

-----X

To the above-named Defendant:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
September 3, 2020

JESSICA MASSIMI

/s/

By:

99 Wall Street, Suite 1264
New York, NY 10005
646-241-9800
Jessica.Massimi@gmail.com

To: The City of New York
c/o The New York City Law Department
100 Church Street
NY, NY 10007

Police Officer Tuhin Khan
32nd NYPD Precinct
250 West 135th Street
New York, NY 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.:
RAYHANAH ALHANAFI,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK,
POLICE OFFICER TUHIN KHAN, JOHN DOES 1-3,
AND JANE DOE

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

Defendants.

-----X

Plaintiff, RAYHANAH ALHANAFI, by her attorney, JESSICA MASSIMI, hereby
complains of the Defendants, upon information and belief, as follows:

PARTIES

1. At all times mentioned herein, Plaintiff, RAYHANAH ALHANAFI, was an adult female resident of Kings County, in the State of New York.
2. At all relevant times mentioned herein, Defendant City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.
3. At all times hereinafter mentioned, Defendant, POLICE OFFICER TUHIN KHAN, was an adult male employed by the City of New York as a member of the NYPD assigned to the 32nd Precinct. Defendant POLICE OFFICER TUHIN KHAN is sued herein in his official and individual capacities.
4. At all times hereinafter mentioned, Defendants, JOHN DOES 1-3, were adult males employed by the City of New York as members of the NYPD assigned to the 32nd Precinct

whose names are currently unknown to the Plaintiff. Defendant JOHN DOES 1-3 are sued herein in their official and individual capacities.

5. At all times hereinafter mentioned, Defendant, JANE DOE, was an adult female employed by the City of New York as a member of the NYPD assigned to the 32nd Precinct whose name is currently unknown to the Plaintiff. Defendant JANE DOE is sued herein in her official and individual capacities.
6. Defendant Khan and the Doe Defendants are collectively referred to as the “Individual Defendants.”
7. The Plaintiff timely served a Notice of Claim on the municipal Defendant and complied with all conditions precedent to commencing an action under state law.
8. At least thirty days have elapsed since service of Plaintiff’s Notice of Claim and adjustment and payment thereof has been neglected or refused.
9. That the within action has been initiated within one year and ninety days of the accrual of Plaintiff’s claims pursuant to New York State Law.

RELEVANT FACTS

10. On July 12, 2019, at about 10:15 p.m. Plaintiff was lawfully operating a car at or near the northwest corner of West 145th Street and 7th Avenue in the County, City and State of New York.
11. At this time, Defendants Khan and John Does 1-3 arrived on duty, in uniform, and in marked NYPD vehicles.
12. Defendants pulled Plaintiff’s vehicle over, Plaintiff complied, and Defendant Khan approached Plaintiff’s driver’s side window.
13. Defendant Khan instructed Plaintiff to hand over her driver’s license and she complied.

14. Defendant Khan left Plaintiff and returned to his vehicle. He returned to Plaintiff a few minutes later and stated to Plaintiff that her license was suspended and her license plate was forged. Both of Defendant Khan's statements were false.
15. In response, Plaintiff attempted to show Defendant Khan proof of documentation that she had just purchased her temporary license plate and she had just paid a ticket on her driver's license to prevent it from being suspended.
16. Defendant Khan then instructed Plaintiff to step out of the vehicle and Plaintiff complied.
17. When Plaintiff stepped out of the vehicle, the Individual Defendants surrounded Claimant.
18. Defendant Khan started to grab at Plaintiff.
19. Plaintiff was not involved in any activity which would have justified her arrest and there in fact existed no probable cause to justify Plaintiff's arrest.
20. Plaintiff respectfully requested that Defendant Khan not touch her, and Plaintiff asked Defendant Khan to get a female police officer to arrest her.
21. Defendants continued to surround Plaintiff and continued to grab at Plaintiff without any reason or justification.
22. Plaintiff once again asked the Defendants to get a female officer rather than touch her.
23. Plaintiff was not engaged in any activity which would have justified the use of force against her.
24. Defendants Khan and John Does 1-3 responded by becoming increasingly aggressive and throwing Plaintiff to the ground.
25. Defendant Khan got on top of Plaintiff and the other Defendants continued grabbing at Plaintiff. Defendant Khan pressed his knee down on Plaintiff's neck and in her back.
26. Plaintiff told the Defendants that she could not breathe and that she has asthma.

27. The Defendants nonetheless continued assaulting Plaintiff and placed her hands in handcuffs behind her back.
28. The Defendants dragged Plaintiff to their vehicle with her underwear showing, and pushed Plaintiff inside of the vehicle sideways as she continued to gasp for air and say she couldn't breathe.
29. In response, Defendant Jane Doe began pushing down on Plaintiff's chest as Plaintiff was gasping for air and restrained in back seat of the vehicle, during which Defendant Jane Doe continuously called Plaintiff a "stupid bitch."
30. One of the John Doe Defendants then dragged Plaintiff across the backseat of the police vehicle.
31. As a result of the force used by the Defendants against Plaintiff, Plaintiff sustained pain and injuries to her neck, back, hands, and arms.
32. Despite the lack of probable to arrest the Plaintiff, the defendants transported Plaintiff to a stationhouse of a local police precinct, where Plaintiff was held for a number of hours before she was transferred to New York County Central Booking, where she was held in custody for an additional period of many hours.
33. While at the precinct, Plaintiff repeatedly asked Defendant Khan for medical attention and to go to the hospital, but Defendant Khan refused.
34. Plaintiff was arraigned on a criminal complaint containing false allegations provided by Defendant Khan.
35. In support of the criminal complaint for Plaintiff, Defendant Khan made several false allegations, which Defendant Khan knew to be false when he made them.

36. Defendant Khan forwarded these false allegations to the New York County District Attorney's Office ("NYCDA") despite the false nature of the allegations.
37. Plaintiff was eventually released from custody and forced to return to Court pursuant to the false allegations made by Defendant Khan.
38. Plaintiff's charges were eventually dismissed when she acceded to an adjournment in contemplation of dismissal.
39. At no time did Defendants have a legal basis to stop or arrest Plaintiff, nor was it reasonable for the Defendants to believe that such a basis existed.
40. At no time did Defendants have probable cause to seize, detain or arrest the Plaintiff nor was it reasonable for the Defendants to believe that such cause existed.
41. Any no time was there any justification for the use of force against Plaintiff, much less the level of force applied by the Defendants.
42. At no time did any of the defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the heretofore conduct engaged in by their fellow officers.
43. That at all times relevant herein, the Defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION
(Section 1983 False Arrest Claim Against the Individual Defendants)

44. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

45. The Individual Defendants willfully and intentionally seized, searched, detained, and arrested Plaintiff, and caused her to be imprisoned, without probable cause, and without a reasonable basis to believe such cause existed.
46. Plaintiff had not been engaged in any criminal conduct, nor was she engaged in any conduct that could reasonably be viewed as criminal nor a basis to justify her arrest.
47. Despite the absence of sufficient legal cause, Plaintiff was arrested and jailed.
48. By so doing, the Individual Defendants subjected Plaintiff to false arrest and imprisonment, and thereby violated and aided and abetted in the violation of Plaintiff's rights under the Fourth Amendment of the United States Constitution.
49. By reason thereof, the Individual Defendants have violated 42 U.S.C §1983 and caused Plaintiff to suffer the deprivation of her liberty, loss of her constitutional rights, physical injuries, and mental anguish.

SECOND CAUSE OF ACTION
(Section 1983 Denial of a Fair Trial Claim Against the Individual Defendants)

50. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.
51. The Individual Defendants willfully and intentionally fabricated evidence by falsely memorializing claims to have witnessed Plaintiff engaging in criminal or unlawful activity, and then forwarded these materially false claims to the New York County District Attorney's Office ("NYCDA") in order to justify the arrest of Plaintiff, and to justify, bring about and cause Plaintiff to be deprived of their liberty and to be criminally prosecuted.
52. By so doing, the Individual Defendants subjected the Plaintiff to denial of a fair trial and violation of her right to due process by fabricating evidence and otherwise providing

prosecutors with a materially false and misleading version of events, and thereby violated Plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution.

53. By reason thereof, the Individual Defendants have violated 42 U.S.C. §1983 and caused Plaintiff to suffer the deprivation of her liberty, loss of her constitutional rights, physical injuries, and mental anguish.

THIRD CAUSE OF ACTION
(Section 1983 Malicious Prosecution Against the Individual Defendants)

54. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

55. The Individual Defendants willfully and intentionally caused Plaintiff to be subjected to criminal prosecution by falsely memorializing claims to have witnessed Plaintiff engaging in criminal or unlawful activity, and then forwarded these materially false claims to the KCDA, which resulted in the KCDA presenting criminal charges against Plaintiff without probable cause for said prosecution.

56. The criminal prosecution caused Plaintiff to suffer a deprivation of liberty before Plaintiff's criminal charges were terminated favorably.

57. By so doing, the Individual Defendants caused Plaintiff to be maliciously prosecuted, and thereby violated Plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution.

58. By reason thereof, the Individual Defendants have violated 42 U.S.C. §1983 and caused Plaintiff to suffer the deprivation of her liberty, loss of her constitutional rights, physical injuries, and mental anguish.

FOURTH CAUSE OF ACTION
(Section 1983 Excessive Force Against the Individual Defendants)

59. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

60. As a result of the Defendants' conduct, Plaintiff was subjected to excessive force.

61. By reason thereof, the Individual Defendants violated 42 U.S.C. §1983 and caused Plaintiff to suffer the deprivation of her liberty, loss of her constitutional rights, physical injuries, and mental anguish.

FIFTH CAUSE OF ACTION
(Section 1983 *Monell* Claim Against the Municipal Defendant)

62. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

63. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

64. Defendant City of New York had actual or constructive knowledge that there was inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, abuse of arrest powers, fabrication of evidence, and other blatant violations of the United States Constitution and the rules and regulations of the NYPD.

65. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and appropriate levels of supervision were put place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the Plaintiff herein.

66. Defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice, and custom of utilizing illegal and impermissible searches, arrests, and detentions, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the Plaintiff's arrest.
67. The acts complained of herein are a direct and proximate result of the failure of the City of New York and the NYPD properly to select, train, supervise, investigate, promote and discipline police and correction officers and supervisory officers.
68. The failure of the City of New York and the NYPD properly to select, train, supervise, investigate, promote and discipline police and correction officers and supervisory officers constitutes gross and deliberate indifference to unconstitutional conduct by those officers.
69. The official policies, practices and customs of the City of New York and the NYPD alleged herein violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth and Fourteenth Amendments to the Constitution of the United States.
70. All of the acts and omissions by the Individual Defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures, and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

71. Therefore the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of the Plaintiff's rights in particular.
72. By reason thereof, the municipal defendant has violated 42 U.S.C. §1983 and caused Plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of her constitutional rights.

**Sixth Cause of Action
(Civil Rights Violations Pursuant to New York State Law)**

73. Plaintiff repeats the allegations contained in each of the foregoing paragraphs as though stated fully herein.
74. Plaintiff was subjected to false arrest, excessive force, malicious prosecution, denial of due process and fair trial, through the defendants' use of fabricated evidence and the making of false statements.
75. At no time did Defendants have any legal basis for arresting Plaintiff, subjecting her to prosecution, or commencing criminal process against them, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or otherwise appropriate.
76. The Defendants are therefore liable under New York law to Plaintiff for false arrest, malicious prosecution, denial of due process and fair trial, and excessive force.
77. By reason thereof, Defendants have caused Plaintiff to suffer emotional and physical injuries, mental anguish, the loss of her constitutional rights, and unlawful incarceration.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the Plaintiff demands judgment against the Individual Defendants and the City of New York as follows:

- i. actual and punitive damages against the Individual Defendants in an amount to be determined at trial;
- ii. actual damages in an amount to be determined at trial against the City of New York;
- iii. statutory attorney's fees pursuant to, inter alia, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
September 3, 2020

JESSICA MASSIMI

/s/

By:

99 Wall Street, Suite 1264
New York, NY 10005
646-241-9800
Jessica.Massimi@gmail.com